

Statement of the Case.

TYLER *v*. JUDGES OF THE COURT OF REGISTRATION.

ERROR TO THE SUPREME JUDICIAL COURT OF THE COMMONWEALTH OF MASSACHUSETTS.

No. 213. Argued October 25, 1900.—Decided December 17, 1900.

A petitioner in an application for a writ of prohibition to the judges of a Court of Land Registration upon the ground that the contemplated proceedings in said court denied to parties interested due process of law, cannot maintain a writ of error from this court to the Supreme Court of the State without showing that he is personally interested in the litigation, and has been, or is likely to be, deprived of his property without due process of law.

The fact that other persons in whom he has no personal interest and who do not appear in the case, may suffer in that particular is not sufficient.

THIS was a petition by Tyler to the Supreme Judicial Court of Massachusetts for a writ of prohibition to be directed to the Judges of the Court of Registration to prohibit them from further proceeding under what is known as the Torrens Act in the registration of a certain parcel of land described in the application, or in the determination of the boundary between such parcel of land and land of petitioner.

The petition alleged in substance that David E. Gould and George H. Jones, on December 22, 1898, applied to the Court of Land Registration to have certain land in the county of Middlesex brought under the operation and provisions of the Land Registration Act, and to have their title thereto registered and confirmed. The land referred to was shown on a plan filed with the application. The petitioner, who was the owner of an estate in fee simple in a parcel of land adjoining part of the land described in the application, insisted that the boundary line between his land and the part aforesaid was not correctly shown on the plan filed with the application, but encroached upon and included part of his land. The petition prayed for a writ of prohibition, and alleged that the Land Registration Act